

# 18STCV05865 18STCV05865

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-20

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Case Number: 18STCV05865 Hearing Date: August 20, 2026 Dept: 617

Dept. 617

Date: 8-20-26

Case #: 18STCV05865

Trial Date: N/A

ATTORNEY'S FEES

MOVING PARTY: Defendants, Ricardo Lopez and Esteban Lopez

RESPONDING PARTY: Plaintiffs, Martin Lara and Martha Lucatero aka Martha Lara

RELIEF REQUESTED

Motion for Attorney's Fees

SUMMARY OF ACTION

Plaintiffs Martin and Martha Lara sued Defendants Pedro, Ricardo, David, Jose, and Esteban Lopez as individuals and trustees of the Lopez Family Trust, asserting ten causes of action: (1) Retaliation — Civ. Code § 1942.5; (2) Breach of the Warranty of Habitability; (3) Invasion of Privacy; (4) Breach of the Covenant of Quiet Enjoyment — Civ. Code § 1940.2; (5) Violation of the Bane Act — Civ. Code § 52.1; (6) Violation of the Unruh Civil Rights Act, Civil Code § 51; (7) Violation of the Fair Housing Act; (8) Illegal Rent Increase - LAMC § 151.04 (9) Tortious Negligence; and (10) Unfair Business Practices — Bus. & Prof. Code §§ 17200 et seq.

On July 29, 2021, Plaintiffs dismissed Defendant Pedro Lopez without prejudice. On August 13, 2024, the Court granted Defendants Ricardo and Esteban Lopez's motion to dismiss the entire complaint. On January 8, 2025, the Court denied the motion to vacate the dismissal. On June 12, 2025, the Court denied Ricardo and Esteban Lopez's motion for attorneys' fees without prejudice because it was prematurely filed.

RULING: Granted.

The instant hearing comes after the Court continued Defendants Ricardo Lopez and Esteban Lopez's motion for attorney's fees to permit apportionment of fees based on the reasonable fees incurred in defending against the habitability claim. Defense counsel submitted a supplemental declaration requesting \$86,600 based on his apportionment, contrasted to the original requested amount of \$109,500 for 219 hours of work. This represents 173.2 hours billed at a rate of \$500/hour. [Endler Suppl. Decl. ¶¶ 2, 17.] Plaintiffs submitted a supplemental opposition challenging the apportionment and reiterating their attacks on certain entries. The Court finds counsel's hourly rate reasonable. Thus, the sole issue is the sufficiency of the apportionment and reasonableness of the entries. Defendants' motion for attorney's fees is granted, and they are awarded \$71,750 in fees.

The Court first addresses Plaintiffs' challenges to the entries and uses the original requested figures as the starting point. The Court agrees with Plaintiffs that fees incurred in re-filing the attorney's fees motion following the premature filing are duplicative and not reasonably incurred. The 5 hours spent on re-filing the fees motion are therefore excluded. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 [“'[P]adding' in the form of inefficient or duplicative efforts is not subject to compensation"].) [Endler Decl. ¶ 10, Ex. 9: 07/11/2025.] The 9 hours

spent on opposing the motions to compel production and attending the hearing are also excluded as unreasonable or unnecessary to the litigation as the motions were the result of Defendants' own discovery misconduct. (See *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774-75 [reducing amount where party “engaged in conduct that made much of the litigation unnecessary”].) [Endler Decl. ¶ 10, Ex. 9: 09/26/2022; 10/12/2022.] Thus, 14 hours are not included in calculating the fee amount.

The Court next considers Defendants' apportionment. Defense counsel does not apportion the individual entries based on recoverable or non-recoverable time but rather provides “estimates” on the amount of time spent on issues and claims for which fees cannot be recovered. He represents that only 2 hours were spent on the causes of action for violation of the Bane Act, violation of the Unruh Civil Rights Act, violation of the Fair Housing Act, illegal rent increase, and unfair business practices. [Endler Suppl. Decl. ¶ 5.] Counsel further estimates that only 20% of his total time was spent on defending against harassment and privacy issues/claims. [Id. ¶¶ 11-12.] This represents a total reduction of 45.8 hours. While these estimates may serve as a baseline for determining a reasonable apportionment given the dearth of evidence presented, the Court does not adopt them. Instead, the Court elects to exercise its discretion to assign a “reasonable percentage to the entries.” (*Bell v. Vista Unified School Dist.* (2000) 82 Cal.App.4th 672, 689.)

The Court assigns that 30% of the expended hours were spent on non-recoverable claims and issues and applies this to all entries. This percentage is reasonable given the allegations in the complaint, the deposition of Ricardo Lopez, the requests for admission served on Defendants, and the existence of some overlap between claims. In addition to habitability issues, Plaintiffs alleged in their complaint unlawful rent increases, harassment, unlawful entries onto the property, and surveillance of Plaintiffs and photographs taken of their children. Considerable time was spent during Ricardo Lopez's deposition on many of these issues and the requests for admission directed multiple requests on these topics. [See generally Compl.; Nicholson Decl. ¶¶ 4-5, Exs. B-C.] Defense counsel's assertion that all work regarding the alleged unlawful entries involved habitability issues is also unsupported. Reducing the remaining 205 hours by 30% results in 143.5 hours of compensable time. Multiplying the hours by the \$500 hourly rate produces a total fee award of \$71,750.

Defendants' motion is thus granted, and they are awarded \$71,750 in fees.

Because the amount of fees exceeds \$5,000, the order is immediately appealable. (Code Civ. Proc., § 904.1, subd. (a)(12); *Doe v. Luster* (2006) 145 Cal.App.4th 139, 146.)

Defendants to give notice.